

United States Court of Appeals for the Fourth Circuit

Piedmont Booksellers Guild v. City of Norvale

No. SYN-CA4-26-CV-4103 Opinion Filed June 18, 2026

Judge Quill wrote the opinion for a unanimous panel joined by Judges Fen and Vale. The City of Norvale appeals an order preliminarily enjoining application of its Paid-Speaker Permit Ordinance to the Piedmont Booksellers Guild's six announced 2026 book fairs. We have interlocutory jurisdiction under 28 U.S.C. § 1292(a)(1). The passage of the first two fair dates does not moot a controversy governed by the same operative ordinance and injunction for four remaining events.

On this record, the district court did not abuse its discretion in finding the Guild likely entitled to interim protection. The ordinance uses compensated-speaker status to trigger a forty-five-day identity-and-topic submission and an escalating charge, while the City's demonstrated logistical interests turn more directly on schedule, format, expected attendance, equipment, and site conditions. But the injunction does not satisfy Federal Rule of Civil Procedure 65(c) and (d). We affirm entitlement and remand only for a superseding compliant order, leaving existing protection in force until that order enters.

I. The recurring fairs

The Guild is a nonprofit association of booksellers, small publishers, librarians, and readers. Since 2019 it has organized free Saturday book fairs at Cedar Commons, a City-owned public park used for community gatherings and expressive programs. A typical fair has eighteen to twenty-eight sellers and four to seven authors who receive modest honoraria to read, discuss their work, and answer questions. Admission and the literary programs are free. Sellers conduct ordinary commerce from temporary tables, while scheduled presentations gather listeners in a designated area. JA1–8, JA34–48.

The event history is peaceful but not operationally empty. No violence, arrest, or property damage has been attributed to a Guild fair. Two minor medical calls occurred, one for heat-related dizziness and another for a curbside fall. Vendors sometimes created short unloading delays or narrowed a service route with boxes, and listeners could congest the central walk when a reading ended. Guild volunteers and City employees addressed those matters through routine directions. The parties agree that emergency access, loading, capacity, and traffic coordination are legitimate responsibilities. JA30–33, JA44–48, JA54–64.

The Guild announced six Cedar Commons fairs for February 14, April 11, June 13, August 8, October 10, and December 12, 2026. It can reserve a general footprint and estimate attendance months ahead, but its author roster changes with publication schedules, travel, caregiving, illness, and sponsorship. Some regional writers confirm within the last month. The Guild says late additions are often those least able to appear without an honorarium and least likely to have a large sponsor. JA34–43, JA58–64.

The City reasonably observes that every date has its own conditions. Nearby reservations, construction, weather, transit patterns, and personnel differ. A replacement author may change more than a name if the format or audience changes. The Guild accepts date-specific review and offers site plans, loading windows, emergency contacts, presentation times, formats, equipment needs, and expected attendance. The dispute is narrower: whether paid status, advance identity and topic disclosure, and another charge per speaker fit the asserted interests sufficiently to govern these recurring literary programs. JA44–64, JA88–92.

II. The ordinance

Norvale adopted Ordinance N-2025-18 in August 2025 and issued its standardized form and fee schedule in November. An organizer of a recurring public event must apply separately for each date at least forty-five calendar days ahead if it schedules one or more compensated speakers. The filing identifies each paid speaker's name, topic, and time; provides a site plan, expected attendance, traffic proposal, and emergency contact; and pays \$240 for the event plus \$45 for each paid speaker. An ordinary vendor who does not address an audience is outside the added regime. JA15–22.

The City may deny or condition a permit for documented crowd, traffic, emergency, sanitation, competing-use, or municipal-resource risks and must give written reasons. No official may favor or disfavor a viewpoint. A topic may be described generally. A later substitution may be requested, but the ordinance does not promise approval, state a decision deadline, or define when a change is operationally material. For six compensated authors, the scheduled amount is \$510; the same roster across six dates would produce \$3,060 in charges before honoraria, tents, insurance, or transportation. JA15–22, JA34–43.

The legislative materials identify real interests in pedestrian flow, loading, transit access, emergency lanes, sanitation, and staff allocation. A scheduled address can concentrate listeners in a way that dispersed vendor conversations do not. Yet the same materials acknowledge that compensation is not a precise measure of crowd size and that an unpaid speaker may attract an audience. Staff selected payment as an administrable indicator of a planned program under the organizer's control. JA23–29.

The early enforcement history is limited. Two complete pilot applications were approved with conditions tied to an emergency route and a bus boarding area. No permit was denied, no event was closed, and no decision discussed a presenter's viewpoint. City time records use broad task categories and do not isolate minutes spent on each speaker. The pilot thus shows neutral initial administration, but it cannot establish how a contested late literary substitution will be treated or how closely each \$45 increment tracks cost. JA30–33.

III. Proceedings below

The Guild filed its verified complaint and preliminary-injunction motion on January 5. The City answered and opposed. The parties submitted declarations, municipal records, photographs, maps, a recurring calendar, reservation excerpts, dispatch abstracts, and a stipulated facts and alternatives chart. The district court held a reported hearing on January 19. Counsel examined the Guild director, parks director, and police logistics declarant and argued the fit between the speaker trigger and the City's planning interests. JA65–114.

On January 23, the court granted preliminary relief. It treated the ordinance as content neutral and found no viewpoint discrimination. It nevertheless concluded the Guild likely would show that compensation, a rigid advance roster, and a per-speaker fee burden more protected programming than the proved operational interests require. It found irreparable planning and expressive injury and determined that neutral safety measures preserved the equities and public interest. JA115–124.

The operative paragraph enjoined the City, its officers, agents, employees, attorneys, and persons acting in concert with them “from enforcing the Paid-Speaker Permit Ordinance” against the announced 2026 fairs. It then stated that the City could continue applying neutral, generally applicable requirements concerning reservations, capacity, traffic, emergency access, sanitation, physical layout, competing uses, and materially changed event conditions. It did not identify by section which application items, charges, disclosure requirements, or conditioning powers were restrained. It set no security and made no express security finding. JA123–124.

The City sought a district stay on January 26, expressly proposing expedited administration and partial alternatives. The Guild opposed; the City replied. On January 28, the district court denied a stay after applying the governing factors, while preserving the City's ability to ask this Court. The City filed its notice on January 29 and then sought an appellate stay with the district papers attached. A panel denied that motion on February 6. Those stay rulings did not decide this merits appeal. JA125–146; PA9–33.

IV. Jurisdiction and continuing controversy

Section 1292(a)(1) grants courts of appeals jurisdiction over interlocutory orders granting injunctions. The January 23 order grants a preliminary injunction and regulates the City's conduct while the underlying action remains unresolved. The notice was filed six days later. We therefore have jurisdiction over review of that order. We do not possess final-judgment jurisdiction over the complaint's unresolved merits, and our disposition does not adjudicate permanent relief.

The City also followed district-first stay practice. It filed a supported motion below, received a reasoned denial, and supplied that motion, opposition, reply, and ruling with its appellate request. Federal Rule of Appellate Procedure 8 and the local rule ordinarily require that sequence or a showing of impracticability. Compliance made the emergency application procedurally eligible; it did not create an entitlement to a stay or expand the substantive scope of this appeal.

After briefing, the City moved to dismiss because the February fair had passed. We denied that request. The record did not concern a single isolated event. Before suit, the Guild announced six dates governed by one ordinance. The injunction expressly covers that recurring series, and four dates remained when the motion was filed. The City continues to defend the ordinance and seek relief from an order that presently controls its administration. The Guild continues arranging paid programs while relying on that protection.

Our published decision in *Robinson v. National Collegiate Athletic Association* cautions against converting a recurring, time-limited dispute into one expired event when the challenged policy remains operative and the same party reasonably faces it again. The facts here are more direct than the boundary cases we need not decide: same organizer, same City, same park, same ordinance, same calendar year, and the same injunction. The unresolved district action does not eliminate the immediate consequences that make the injunction appealable. This controversy is live.

V. Standard governing preliminary relief

A preliminary-injunction movant must clearly establish likely success on the merits, likely irreparable harm without relief, that the balance of equities favors relief, and that an injunction serves the public interest. *Pashby v. Delia* applies those *Winter* requirements and explains the appellate standard. We review legal conclusions de novo, factual findings for clear error, and the ultimate grant for abuse of discretion. A mistake of law or clearly erroneous assessment can constitute an abuse; disagreement over a permissible balance cannot.

This procedural posture matters. We decide whether interim relief was warranted on the record presented, not whether the Guild has proved final liability. The ordinance may be developed through discovery or revised. Later events may reveal stronger cost attribution, different crowd effects, or a more regular amendment practice. The district court acknowledged those possibilities. It was required to make a reasoned likelihood determination now because invitations and event planning could not wait for final judgment.

VI. Likely success: protected expression and neutrality

Paid author readings, literary discussions, and audience questions are protected expression. Payment does not strip speech of constitutional protection. In *Billups v. City of Charleston*, we rejected the premise that an occupational or compensated setting places communicative activity outside First Amendment scrutiny. Book sales at the surrounding fair likewise do not make the scheduled free programs unprotected. The City's legitimate authority over public property coexists with those protections.

We agree with both the City and district court that this record does not establish content or viewpoint discrimination. Coverage turns on compensation and a scheduled presentation, not approval of the subject. The form accepts a general topic description, the legislative record is operational, and the pilot decisions do not evaluate ideas. The Guild's claim succeeds preliminarily, if at all, because a content-neutral mechanism burdens more speech than its interests justify—not because Norvale censored a disfavored author.

VII. Narrow tailoring

Content neutrality is a beginning, not an end. *Billups* requires the government to establish a sufficiently close fit between a speech burden and the asserted interests, supported by evidence and considered against substantially less burdensome alternatives. Narrow tailoring does not demand the least restrictive means, and courts may not replace municipal policy merely because another system seems preferable. But administrative convenience alone cannot carry a burden whose operative trigger is poorly connected to the risk invoked.

Norvale's interests are significant. Audience concentrations can narrow a walkway, loading can delay traffic, simultaneous uses can strain capacity, and emergency lanes must remain open. Advance information can make preventive coordination effective. The district court did not discount those responsibilities. It asked which information bears on them and what the ordinance adds. That framing is faithful to the tailoring inquiry rather than an illicit demand that the City await injury.

The paid-speaker trigger identifies a planned program, but the record shows that the City can identify planned programs directly. Its form already asks for time, location, format, equipment, expected attendance, site layout, and traffic information. Those features bear on operational effect whether a speaker receives an honorarium or appears without payment. Compensation may correlate with organizer control, yet the City offered no evidence that it predicts the need for a service or condition better than the information it separately collects.

That weakness is concrete in the Guild's recurring setting. Replacing one author with another in the same twenty-minute slot, location, format, and expected audience might change only the identity and subject. Adding a panel, amplification, equipment, or a materially larger audience might justify renewed planning. The City may distinguish those circumstances. The ordinance instead makes paid identity and topic part of a complete submission forty-five days ahead without stating which later changes matter operationally.

The disclosure and amendment provisions therefore reinforce the likely mismatch. A short topic line is less burdensome than a detailed synopsis, and there is no evidence staff reviewed ideology. But the Guild must finalize expressive choices earlier than its customary invitation process even when the subject does not alter logistics. Staff may consider a late substitution, but no enacted time or materiality standard assures review before the opportunity expires. Good-faith voluntary administration does not eliminate the present uncertainty.

The stipulated alternatives do not compel one replacement ordinance. They show that Norvale can request presentation schedules and operational characteristics, use attendance or format thresholds, impose site-specific conditions, and require updates when material facts change. Some mix may prove workable; others may impose their own costs. At this preliminary stage, the alternatives support the district court's narrower conclusion that the existing payment-linked roster mechanism is not shown necessary to achieve the documented fit.

The fee schedule presents the same evidentiary problem. Norvale attributes \$240 to event intake and written coordination and \$45 per paid speaker to added schedule review. Government may recover permissible administrative expenses associated with protected uses. But the pilot records do not isolate time per speaker, and the charge increases even if a sixth author replaces another in the same slot or draws fewer listeners. The schedule is fixed while actual staff effort varies.

For six speakers, one event costs \$510 and six comparable events would cost \$3,060. Those amounts affect the record's nonprofit organizer and small booksellers. The district court did not deem every fee unconstitutional merely because it burdens a limited budget. It found the City had not connected the per-speaker increment closely enough to an incremental administrative expense. Given the record and *Billups*, that finding and the resulting likelihood conclusion are not clearly erroneous or legally mistaken.

VIII. The other preliminary factors

The Guild demonstrated irreparable harm. Its injury occurs when it chooses whom to invite, whether to promise an honorarium, whether a small seller can participate, and whether to advertise. An appearance lost because confirmation came after the deadline cannot be recreated by damages or shifted mechanically to another date. The uncertainty is governed by present requirements, not a speculative fear of viewpoint hostility. The February urgency has passed, but the same planning cycle continues for the recurring dates.

The equities also support tailored protection. The City retains authority over reservation priority, capacity, emergency access, traffic, loading, sanitation, physical layout, competing uses, and material operational changes. The Guild committed to provide relevant updates and follow documented safety directions. The peaceful history does not erase prospective risks; it shows that ordinary coordination has managed the identified congestion and medical incidents. On that balance, preventing the challenged proxy rules while preserving direct safety measures was within the court's discretion.

The public interest similarly includes both constitutional freedom and safe access to shared property. Interim protection serves neither interest if it prevents Norvale from addressing an actual hazard, and the district court did not order that result. Nor does public safety require speaker-specific identity, topic, and payment burdens when direct operational facts remain available. The order's intended division—protect expression while preserving neutral logistics—is supported by the record.

Both sides retain incentives to cooperate under that division while the merits develop.

We therefore affirm the determination that all four preliminary factors were established. Our holding is deliberately limited. It does not facially invalidate every application of Ordinance N-2025-18, fix a permanent regulatory framework, or preclude the City from proving a different fit on a fuller record. It holds that the Guild was entitled to preliminary protection for its announced fairs under the evidence before the district court.

IX. Rule 65(d)

Entitlement does not excuse an imprecise injunction. Rule 65(d) requires an order to state its terms specifically and describe in reasonable detail—without incorporating another document—the acts restrained or required. The rule protects fair notice, confines contempt, and permits meaningful review. *Pashby* treats compliance as mandatory even when the underlying equitable determination is sound.

The operative paragraph restrains “enforcing the Paid-Speaker Permit Ordinance” and then preserves broad categories of neutral rules. That language leaves material uncertainty. The combined enactment includes application timing, logistical submissions, names, topics, fees, written reasons, and conditioning powers. Staff cannot tell from the operative text which requests remain permissible when a paid speaker is involved or how a material change differs from a restrained identity change. The explanatory opinion supplies context but does not replace the detailed command Rule 65(d) requires.

The superseding order must place that operative guidance within its own terms.

X. Rule 65(c) and remedy

Rule 65(c) requires the court to address security in connection with preliminary relief. The district court set no amount and made no express, record-supported determination that security should be waived or nominal. The City did not quantify a bond in its opposition, and its alleged fiscal harm may be limited, but silence does not perform the required assessment. The court must identify the risks security would cover and exercise its discretion expressly.

These defects call for correction, not dissolution of otherwise warranted protection. *Pashby* permits a limited remand that leaves interim relief in place until a district court enters a superseding order complying with Rule 65(c) and (d). That course protects the Guild from a gap that could consume a scheduled event while ensuring the City and its employees receive a precise command and an explained security ruling. We direct no particular bond amount or wording beyond the governing rules.

XI. Disposition

We exercise jurisdiction under § 1292(a)(1), deny the City's mootness request, and affirm the Guild's entitlement to a preliminary injunction on this record. We grant only the request for a limited Rule 65 corrective remand. The district court shall promptly enter a superseding order that identifies the restrained acts in reasonably specific operative terms and makes an express determination concerning security supported by the record.

The January 23 injunction remains effective until that superseding compliant order enters. Our judgment and mandate do not dissolve it. The district court may manage the unresolved merits, address materially changed circumstances, and fashion the corrected interim terms consistently with this opinion. We express no final view on permanent relief or every application of the ordinance. Each side shall bear its own appellate costs.

**AFFIRMED IN PART AND REMANDED WITH LIMITED INSTRUCTIONS;
INTERIM PROTECTION REMAINS IN EFFECT.**